

**SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER
OCCURRED ON THE ACTUAL DOCKET — ALL FACTS AND
IDENTIFIERS ARE FICTIONAL**

Branch source B14: post-denial mandate route marker B14.

United States Court of Appeals for the Fourth Circuit

Mara Ellison v. Officer Nolan Rusk

No. SYN-CA4-26-CV-4104-CF-NEVER-OCCURRED

Mandate Following Denial of a Stay Pending Certiorari

Issued July 21, 2026

To the United States District Court for the Western District of Virginia:

The judgment entered June 30, 2026 is effective upon issuance of this mandate. The Court dismissed Officer Nolan Rusk's interlocutory challenge to the district court's evidence-sufficiency ruling and affirmed the denial of qualified immunity as a matter of law on the plaintiff-favorable facts identified below. The cause is returned for proceedings consistent with the published opinion.

Rusk moved to stay the mandate on July 15. After Mara Ellison responded, the panel denied relief on July 20 because the proposed petition did not present a substantial question supported by good cause. The panel expressly shortened the default post-denial period under Federal Rule of Appellate Procedure 41(b) and ordered issuance today. No stay remains in force.

This Court has not determined whether Ellison struck Rusk's forearm, moved toward duty equipment, or merely pulled from a painful wrist restraint. The district court's supported assumptions governed the legal appeal, and a factfinder may resolve the historical conflict if necessary. The accompanying opinion states the controlling scope.

Consistent with the costs direction in the June 30 judgment, Ellison and Rusk must each bear their own appellate costs. This mandate awards costs to neither side.

Effect and Remand Boundary

The certified June 30 opinion and judgment accompany this mandate and are incorporated by reference. If the summary here could be read to expand the panel's reasoning, the published opinion controls. In particular, affirmance of the legal immunity denial does not prejudice Rusk's defense under a factual account a jury might later accept.

The district court may resume management of the individual-capacity Fourth Amendment claim, establish pretrial deadlines, rule on evidentiary questions, and take other steps within its jurisdiction. Nothing in the mandate revives dismissed municipal theories or adds a claim against Officer Priya Vega, who remains a witness rather than a party.

Issuance today follows an express one-day post-denial interval, not the ordinary seven-day default. The Court was authorized to shorten the period and provided notice in its July 20 order. This mandate has not been recalled, and no further circuit order postpones its effect.

A later filing in the Supreme Court would have the consequences provided by governing law but does not suspend this mandate automatically. Record materials, including the recordings and device data, remain preserved for the district proceedings. The circuit clerk shall note completion of transmission and close this counterfactual appellate route subject to any authorized costs entry.

Issued under the Court's seal at the direction of Chief Judge Alder and Judges Reed and March on July 21, 2026.